

450 – 496 Prior Street, 550 Malkin Avenue
and 1002 Station Street

BY-LAW NO. 14667

**A By-law to authorize the amendment of a
Housing Agreement Authorized by By-law No. 14507**

PREAMBLE

WHEREAS

Council has authority under the *Vancouver Charter* to amend an existing Housing Agreement with the consent of the owner of property.

AND WHEREAS

Pursuant to By-law No. 14507 enacted November 25, 2025, the City has entered into a Housing Agreement with the owners of certain properties bearing the civic address 450 – 496 Prior Street, 550 Malkin Avenue and 1002 Station Street (the “**Housing Agreement**”).

AND WHEREAS

The City and the owners now wish to amend the Housing Agreement and all proposed amendments are acceptable to the City and the owner.

NOW THEREFORE THE COUNCIL OF THE CITY OF VANCOUVER, in public meeting, enacts as follows:

1. Council authorizes amendment of the Housing Agreement in substantially the form and substance of the modification agreement attached to this By-law as Schedule A and authorizes the Director of Legal Services to execute the modification agreement on behalf of the City and to deliver it to the owner on such terms and conditions as the Director of Legal Services deems fit.
2. A decision by a court that any part of this By-law is illegal, void, or unenforceable severs that part from this By-law, and is not to affect the balance of this By-law.
3. This By-law is to come into force and take effect on the date of its enactment.

ENACTED by Council this 14th day of April, 2026

Signed _____ “Ken Sim”
Mayor

Signed _____ “Katrina Leckovic”
City Clerk



Land Title Act

Charge

General Instrument – Part 1

1. Application

Sampson Davie Fane Volpiana LLP
1100-355 Burrard Street
Vancouver BC V6C 2G8
6043431930

2. Description of Land

PID/Plan Number Legal Description

032-235-089 LOT 1 BLOCK 105 DISTRICT LOTS 196 AND 2037 GROUP 1 NEW WESTMINSTER DISTRICT PLAN
EPP136117

3. Nature of Interest

Type	Number	Additional Information
MODIFICATION	CB2539683	
PRIORITY AGREEMENT		Granting the Modification with one registration number less than this Priority Agreement priority over Mortgage CB2678510 and Assignment of Rents CB2678511 in favour of The Bank of Nova Scotia

4. Terms

Part 2 of this instrument consists of:

(b) Express Charge Terms Annexed as Part 2

5. Transferor(s)

456 PRIOR STREET HOLDINGS LTD., AS TO AN UNDIVIDED 8054/10000 INTEREST, NO.BC1017782

PRIOR STREET PHASE II HOLDINGS LTD., AS TO AN UNDIVIDED 1946/10000 INTEREST, NO.BC1577549

THE BANK OF NOVA SCOTIA, AS TO PRIORITY

6. Transferee(s)

CITY OF VANCOUVER
453 WEST 12TH AVENUE
VANCOUVER BC V5Y 1V4

7. Additional or Modified Terms



8. Execution(s)

This instrument creates, assigns, modifies, enlarges or governs the priority of the interest(s) described in Item 3 and the Transferor(s) and every other signatory agree to be bound by this instrument, and acknowledge(s) receipt of a true copy of the filed standard charge terms, if any.

Witnessing Officer Signature

Execution Date

Transferor / Transferee / Party Signature(s)

YYYY-MM-DD
2026-03-30

456 PRIOR STREET HOLDINGS LTD.
By their Authorized Signatory

Name: Michael Mackay

JENIECE THOMPSON
Commissioner for Taking Affidavits for British Columbia
Commission Expiry: August 31, 2027
2400 – 320 Granville Street
Vancouver, BC V6C 1S9
604-262-9800

Name:

Officer Certification

Your signature constitutes a representation that you are a solicitor, notary public or other person authorized by the *Evidence Act*, R.S.B.C. 1996, c.124, to take affidavits for use in British Columbia and certifies the matters set out in Part 5 of the *Land Title Act* as they pertain to the execution of this instrument.

Witnessing Officer Signature

Execution Date

Transferor / Transferee / Party Signature(s)

YYYY-MM-DD
2026-03-30

PRIOR STREET PHASE II HOLDINGS LTD.
By their Authorized Signatory

Name: Michael Mackay

JENIECE THOMPSON
Commissioner for Taking Affidavits for British Columbia
Commission Expiry: August 31, 2027
2400 – 320 Granville Street
Vancouver, BC V6C 1S9
604-262-9800

Name:

Officer Certification

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Land Title Act

Charge

General Instrument – Part 1

Witnessing Officer Signature

WENYAN YOU
A Commissioner for Taking Affidavits
for British Columbia
34th Floor, 650 West Georgia Street
Vancouver, B.C. V6B 4N7
Commission Expiry Date: August 31, 2028

Execution Date

YYYY-MM-DD

2026-03-26

Transferor / Transferee / Party Signature(s)

THE BANK OF NOVA SCOTIA
By their Authorized Signatory

Signature

Name: **Sheena Cebreno**
Director & Group Lead
Real Estate Banking

Name: _____

Officer Certification

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Witnessing Officer Signature

Execution Date

YYYY-MM-DD

Empty box for Execution Date

Transferor / Transferee / Party Signature(s)

CITY OF VANCOUVER
By their Authorized Signatory

Name: _____

Name: _____

Officer Certification

Your signature constitutes a representation that you are a solicitor, notary public or other person authorized by the *Evidence Act*, R.S.B.C. 1996, c.124, to take affidavits for use in British Columbia and certifies the matters set out in Part 5 of the *Land Title Act* as they pertain to the execution of this instrument.

Electronic Signature

Your electronic signature is a representation that you are a designate authorized to certify this document under section 168.4 of the *Land Title Act*, R.S.B.C. 1996, c.250, that you certify this document under section 168.41 (4) of the Act, and that an execution copy, or a true copy of that execution copy, is in your possession.

Empty box for Electronic Signature

TERMS OF INSTRUMENT - PART 2

MODIFICATION OF HOUSING AGREEMENT AND BUILDING USE COVENANT
(SECURED MARKET RENTAL)

450 - 496 PRIOR STREET, 550 MALKIN AVENUE AND 1002 STATION STREET

WHEREAS:

- A. The Transferor, 456 PRIOR STREET HOLDINGS LTD. and PRIOR STREET PHASE II HOLDINGS LTD., is hereinafter called the “**Owner**”;
- B. The Transferee, CITY OF VANCOUVER, is hereinafter called the “**City**” when referring to the corporate entity and the “**City of Vancouver**” when referring to geographical location;
- C. The Owner is the registered owner of the Lands;
- D. The Owner made an application to rezone the Lands from I-2 District, I-3 District and CD-1 (761) (Comprehensive Development) District to CD-1 (Comprehensive Development) District and to satisfy the conditions of such rezoning, among other things, the Owner entered into a Housing Agreement and Building Use Covenant for Secured Market Rental with the City which was registered at the Land Title Office on December 24, 2025 under numbers CB2539683 to CB2539684 (the “**Housing Agreement**” or the “**Agreement**”);
- E. The Owner made an application for a text amendment of the Rezoning By-law. After a public hearing to consider the text amendment, the application was approved by the City’s Council subject to, among other things, fulfilment of the condition that prior to the enactment of the text amendment by-law, the Owner shall at its sole cost and expense and on terms satisfactory to the Director of Legal Services and the General Manager of Planning, Urban Design and Sustainability make arrangements to enter into an agreement to modify the Housing Agreement to increase the number of Rental Housing Units (as therein defined) from at least 262 to at least 319 (the “**Housing Agreement Modification Condition**”); and
- F. The Owner and the City have agreed to enter into this modification agreement (the “**Modification**”) on the terms and conditions herein to satisfy the Housing Agreement Modification Agreement.

NOW THEREFORE THIS MODIFICATION WITNESSES that, in consideration of each party agreeing to modify the Agreement as set out hereinafter and for good and valuable consideration (the receipt and sufficiency of which the parties hereto acknowledge and agree to), the Owner and the City hereby covenant and agree as follows:

1.1 **Modification of the Agreement.** The Agreement is hereby modified by:

- (a) in Section 1.1(t), deleting “at least 262 new residential units of Rental Housing” and replacing it with “at least 319 new residential units of Rental Housing”;
- (b) in Sections 2.1(b) and 2.1(c), deleting “not less than 262 Rental Housing Units” and replacing it with “not less than 319 Rental Housing Units”; and
- (c) in Section 2.1(d), deleting “for a term of less than one month at a time” and replacing it with “for a term of less than 90 days at a time”.

#4880235v1
February 23, 2026

Modification of Housing Agreement
450 - 496 Prior Street, 550 Malkin Street & 1002 Station Street

- 1.2 **Agreement Ratified and Confirmed.** The Owner and the city acknowledge and agree that the Agreement, as modified by the Modification, is hereby ratified and confirmed to the effect and with the intent that the Agreement and the Modification will be read and construed as one document.
- 1.3 **Amendment.** No alteration or amendment of the Agreement and the Modification shall have effect unless the same is in writing and duly executed by the parties to be charged.
- 1.4 **Binding Effect.** This Modification will enure to the benefit of and be binding upon the parties and their respective successors and permitted assigns.
- 1.5 **Time.** Time is of the essence of this Modification.
- 1.6 **Interpretation.** Unless this Modification or context demands otherwise, all terms in this Modification which are defined in the Agreement will have the meaning ascribed in the Agreement.
- 1.7 **Conflict.** In the event of any conflict between the terms and conditions of the Agreement and this Modification, the terms and conditions of this Modification will prevail.
- 1.8 **Joint and Several Liability.** If the Owner consists of more than one party, each such party will be jointly and severally liable to the City for the performance and observance of this Modification.

IN WITNESS WHEREOF the parties have executed this Modification by signing the General Instrument Part I attached hereto as of the date first above written on the said instrument.

CONSENT AND PRIORITY INSTRUMENT

In this consent and priority instrument:

- (a) **"Existing Chargeholder"** means BANK OF NOVA SCOTIA;
- (b) **"Existing Charges"** means the Mortgage registered under number CB2678510 and Assignment of Rents registered under number CB2678511;
- (c) **"New Charges"** means the registrable charges and encumbrances created by and contained in the attached Terms of Instrument - Part 2; and
- (d) words capitalized in this instrument, not otherwise defined herein, have the meaning ascribed to them in the attached Terms of Instrument - Part 2.

For Ten Dollars (\$10) and other good and valuable consideration, the receipt and sufficiency of which the Existing Chargeholder acknowledges, the Existing Chargeholder:

- (i) consents to the Owner granting the New Charges to the City; and
- (ii) agrees with the City that the New Charges charge the Lands in priority to the Existing Charges in the same manner and to the same effect as if the Owner had granted the New Charges, and as if they had been registered against title to the Lands prior to the grant or registration of the Existing Charges or the advance of any money under the Existing Charges.

To witness this consent and priority instrument, the Existing Chargeholder has caused its duly authorized signatories to sign the attached General Instrument - Part 1.

END OF DOCUMENT